

23BBCV00340 23BBCV00340

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Case Number: 23BBCV00340 Hearing Date: July 17, 2026 Dept: B

Hon. Victor Avila, Dept B

MOTION TO DISMISS AND EXPUNGE LIS PENDENS

Hearing Date: 7/17/26

CASE NO./NAME: 23BBCV00340

Michele A. Santopietro v. Sandra D. Santopietro et al.

Moving Party: Specially

Appearing Defendants Juvelyn Palomique and Stephen Harrison

Responding Party: Plaintiff Michele A. Santopietro

Notice: Sufficient

Ruling:

GRANT

NOTICE

The

Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative

ruling will become the ruling of the court if no argument is received.

Notice

may be given either by email at or by telephone at (818) 260-8422.

BACKGROUND

This is a real property dispute. On June 27, 2007, plaintiff Michelle A Santopietro (Plaintiff) and defendant Sandra D. Santopietro (Defendant), daughter and mother, acquired the property located at 554 E. San Jose Ave., #204, Burbank, California 9150 (the Property) as joint tenants. On October 8, 2008, Plaintiff conveyed her share of the interest in the Property to Defendant. Specially appearing defendants, and bona fide purchasers, Juvelyn Palomique and Stephen Harrison (Movants) later purchased the Property from Defendant.

On February 10, 2023, Plaintiff filed a Complaint alleging two causes of action for (1) quiet title and (2) fraud against Defendant and Movants concerning the Property. Plaintiff alleged that her property interest was conveyed to Defendant without her knowledge, and the subsequent sale of the Property to Movants was wrongful. On February 17, 2023, Plaintiff filed an amended Notice of Pendency of Action with the Court and recorded it in the Los Angeles County Recorder's Office.

On April 5, 2024, the Court dismissed Plaintiff's first cause of action for quiet title against Defendant. On October 21, 2024, the Court granted summary judgment in favor of Defendant, and against Plaintiff. On December 19, 2024, Plaintiff filed a notice of appeal of the judgment. On July 1, 2025, the Second Appellate District entered an order dismissing the appeal.

On January 16, 2026, Movants filed the instant motion to Expunge Lis Pendens requesting an order dismissing Movants from the action, expunging the Notice of Pendency of Action (Lis Pendens) and awarding attorney's fees and costs. Movants argue that they have never been served with the Complaint, which was filed nearly three years ago, but Plaintiff has not dismissed the case against them. Moreover, Movants argue that the judgement entered against Plaintiff defeats any claim to the Property.

On May 11, 2026, Plaintiff filed an opposition. On May 15, 2026, Movants filed a reply.

REQUEST FOR JUDICIAL NOTICE

Plaintiff requests judicial notice of Exhibits: (A) Complaint in this matter (filed February 10, 2023); (B) First Notice of Pendency of Action (filed February 16, 2023, but not recorded); (C) second Notice of Pendency (filed and recorded February 17, 2023); (D) Proof of Service of Summons and Complaint (filed June 21, 2023); (E) Minute Order (dated July 10, 2023); (F) Order re: Motion to Dismiss the First Cause of Action in the Verified Complaint Filed by Plaintiff (dated April 5, 2024); (G) Order re: Motion for Summary Judgment or Alternatively, for Summary Adjudication (filed October 18, 2024); (H) Judgment by Court in favor of Sandra D. Santopietro (entered October 21, 2024); (I) Plaintiff's Notice of Appeal of the Judgment (filed December 19, 2024) and (J) Court of Appeal, Second Appellate District's Order dismissing the Appeal (filed July 1, 2025). The request is granted. (Evid. Code § 452(d).)

MOTION TO DISMISS

Legal Standard

Code of Civil

Procedure section 583.410 authorizes the Court, in its discretion, to dismiss an action for delay in prosecution. Section 583.420(a)(1) expressly provides that the Court may dismiss an action if service is not made within two years after the action commenced against the defendant. The two-year period is measured from the date the complaint is filed.

An unexcused

failure to serve a summons within the two-year period constitutes prima facie grounds for dismissal. In such a case, there is no requirement for an affirmative showing of prejudice. (*Scarzella v. DeMers* (1993) 17 Cal.App.4th 1762, 1768–1769.) The standard for excusing delay in service is more stringent than that for delay in bringing a case to trial, and any claimed impossibility, impracticability, or futility must be strictly construed. (*Id.* at 1770.) To avoid dismissal, the plaintiff must show that he exercised reasonable

diligence throughout the entire two-year period. (A. Groppe & Sons Glass Co., Inc. v. Fireman's Fund Ins. Co. (1991) 232 Cal.App.3d 220, 225.)

Discussion

Movants argue

that it has been well over two years since the filing of the Complaint, and Plaintiff has not served them. (Mot., p. 7.) Moreover, Movants argue it has nearly been three years since the filing of the Complaint and Plaintiff has not brought the case to trial against Movants. (Ibid.)

Plaintiff does

not substantively address Movants' arguments for dismissal in her opposition. (See Opp.)

Here,

the Complaint was filed on February 10, 2023. (See RJN, Exh. A.) As of July 14, 2026, no proof of service for service of the Complaint has been filed with the Court regarding Movants. (Lazaran Decl., ¶ 6.) Thus, it has been more than two years since the action commenced, and Movants have not been served. The statutory period has expired.

Accordingly, the court exercises its discretion and dismisses the action for failure to prosecute.

MOTION

TO EXPUNGE LIS PENDENS

Legal Standard

Code of Civil Procedure section 405.30 states: "At any time after notice of pendency of action has been recorded, any party, or any nonparty with an interest in the real property affected thereby, may apply to the court in which the action is pending to expunge the notice. . . . Evidence or declarations may be filed with the motion to expunge the notice. The court may permit evidence to be received in the form of oral testimony, and may make any orders it deems just to provide for discovery by any party affected by a motion to expunge the notice. The claimant shall have the burden of proof under Sections 405.31 and 405.32." (Code Civ. Proc., § 405.30.)

“In proceedings under this chapter, the court shall order the notice expunged if the court finds that the pleading on which the notice is based does not contain a real property claim.” (Code Civ. Proc., § 405.31.)

“[T]he court shall order that the notice be expunged if the court finds that the claimant has not established by a preponderance of the evidence the probable validity of the real property claim. The court shall not order an undertaking to be given as a condition of expunging the notice if the court finds the claimant has not established the probable validity of the real property claim.” (Code Civ. Proc., § 405.32.)

Because the claimant has the burden of proof, in opposing the motion to expunge the lis pendens, they must demonstrate the following by a preponderance of the evidence: (1) the action affects title to or right of possession of the real property described in the notice; (2) in so far as the said notice is concerned, the party recording the notice has commenced the action for a proper purpose and in good faith; and (3) the probable validity of the real property claim. (*Hunting World, Inc. v. Superior Ct.* (1994) 22 Cal.App.4th 67, 70; see also *Nunn v. JPMorgan Chase Bank, N.A.* (2021) 64 Cal.App.5th 346, 363 [“The party opposing a motion to expunge a lis pendens has the burden to show that a real property claim has been alleged and has probable validity based upon a preponderance of the evidence.”].)

“A claim has ‘probable validity’ where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim.” (Code Civ. Proc., § 481.190.)

Discussion

Movants argue that the dismissal order, MSJ, and judgment, all in favor of Defendant, effectively preclude Plaintiff from demonstrating the probable validity of a real property claim against Movants. (Mot., p. 9.)

In opposition, Plaintiff argues that if the Court were to expunge lis pendens, Movants “will have the door opened wide to commit more crimes” and have “the opportunity to flee the country to avoid prosecution”. (Opp. p. 14.)

Under Code of

Civil Procedure section 405.30, the claimant who filed the lis pendens has the burden of proof. Here, Plaintiff filed the lis pendens, and thus, Plaintiff has the burden of proof. (RJN, Exhibit C; Lazaran Decl., ¶ 3.) Here, the Court dismissed Plaintiff's first cause of action for quiet title against Defendant and summary judgment was entered in favor of Defendant, against Plaintiff, disposing of the cause of action for fraud. (RJN, Exh. F-G.) The Court concluded that no fraud occurred regarding the 2008 deed in which Plaintiff granted Defendant her share of interest in the Property. (Ibid.) Since Plaintiff's claim for quiet title was dismissed and the Court did not find fraud in execution of the 2008 deed, Defendant's conveyance to Movants in 2022 was not wrongful. Moreover, Plaintiff's opposition to the instant motion contains no legal authority and is made up of several criminal accusations against Movants and the Court. Thus, Plaintiff has not provided evidence to demonstrate probable validity of the real property claim by a preponderance of the evidence. Plaintiff has not met her burden under the statute.

Accordingly, the motion to expunge lis pendens is granted.

Attorney's Fees and Costs

"The court shall direct that the party prevailing on any motion under this chapter be awarded the reasonable attorney's fees and costs of making or opposing the motion unless the court finds that the other party acted with substantial justification or that other circumstances make the imposition of attorney's fees and costs unjust." (Code Civ. Proc., § 405.38.)

Pursuant to Code

of Civil Procedure section 405.38, Movants request attorney's fees in the amount of \$2,750 and costs in the amount of \$60.00. (Mot., p. 11.) This amount encompasses six hours in drafting and editing the instant motion and five hours for review of an opposition, preparation of a reply, and appearing at the hearing at a rate of \$250/hour. (Lazaran Decl., ¶ 7.) Movants counsel also requests \$60 in costs for electronic filing. (Ibid.)

The Court finds that the 11.0 hours billed for preparing the motion is excessive. In granting

the instant motion, the Court finds it reasonable to award Movants \$2,060, reflecting 8.0 hours at a rate of \$250/hour and \$60 in costs.

CONCLUSION

AND ORDER

Specially

Appearing Defendants Juvelyn Palomique and Stephen Harrison's motion to Dismiss and motion to Expunge Lis Pendens is GRANTED. Attorney's fees and costs are awarded in the amount of \$2,060.

Specially

Appearing Defendants Juvelyn Palomique and Stephen Harrison shall provide notice of this order.